

IN THE CIRCUIT COURT OF THE FIRST JUDICIAL CIRCUIT
IN AND FOR ESCAMBIA COUNTY, FLORIDA

**DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,**

Plaintiffs,

Case No.: 2018-CA-000543

vs.

Division: E

MARC M. MOSZKOWSKI

Defendant.

**MOTION IN OPPOSITION TO DEFENDANT/APPELLANT'S MOTION
TO DETERMINE INDIGENT STATUS AND WAIVE APPELLATE FILING FEES**

Plaintiffs file this Motion and in support therefor state as follows:

1. On October 27, 2025, Defendant, Marc M. Moszkowski, filed a "MOTION TO DETERMINE INDIGENT STATUS AND WAIVE APPELLATE FILING FEES," (hereinafter, "Defendant's Motion") with an attached "Application for Determination of Civil Indigent Status" (hereinafter, "Application"). [DIN 290]
2. On November 18, 2025, the Clerk of the Circuit Court determined that, "based on the information in [the] Application," Defendant was indigent. [DIN 293]
3. In Defendant's Motion, Defendant claims he "is indigent and cannot pay the filing fees and costs associated with [his] appeal." *Id.* at 1.
4. Defendant attached a completed copy of the Clerk's "Application for Determination of Civil Indigent Status," claiming, *inter alia*, that Defendant has no cash, \$100 in a bank account, and a \$0 interest in his non-homestead real property. *Id.* at 4.

5. On June 12, 2025, this Court issued an “Order on Pretrial Conference and Granting Motion for Sanctions, Striking Pleadings and Entering a Default Against Defendant / Counter-Plaintiff, Marc M. Moszkowski” [DIN 214], in which the Court held,

During the Pretrial Conference, Counsel for Plaintiffs requested the opportunity to present evidence regarding Defendant’s financial assets and medical condition. As far as the financial ability of the Defendant, Rustin Howard testified about his prior visits to the Defendant’s home in France approximately 13 years ago. He testified that this was an over 300-acre property in the wine district of Provence, France. There is a large home on the property, consisting of over 5,000 square feet and a separate servant’s quarters larger than 1,000 square feet. Every room was furnished with antique furniture, original paintings, antique tapestries, Renaissance era statues, and fine draperies. There were at least 6 bedrooms and each bedroom, as the best he could recall, had a corresponding bathroom. The home had a spring fed swimming pool located on a large terrace. Plaintiffs offered and accepted into evidence a set of photographs depicting the property, one of which included a picture of a maid who lived on site.

[DIN 214] at 4–5.

6. The Court also found that on July 17, 2019, Defendant traveled from France to the Northern District of Florida to attend a deposition. *Id.* at 6.

7. Based on these and other findings, the Court denied Defendant’s motions for a virtual bench trial. *Id.* at 7.

8. Plaintiffs have a good-faith belief that Defendant is not indigent and that Defendant has retained legal counsel in France to represent him in Defendant’s real property litigation.

9. Under Rule 9.430(a), Florida Rules of Appellate Procedure, “a signed application for determination of indigent status” is properly filed “with the clerk of the lower tribunal.”

10. The Plaintiffs’ “appropriate remedy, if any, is to file a motion” in opposition to Defendant’s motion in this tribunal. *State, Dept. of Labor & Employment Sec. v. Wolfe*, 613 So. 2d 578, 579 (Fla. 1st DCA 1993).

WHEREFORE, for the reasons stated herein, Plaintiffs (1) oppose the determination that Defendant is indigent; and (2) request a hearing in which Plaintiffs may present evidence in opposition to Defendant's Motion and question Defendant under oath.

Respectfully submitted on November 21, 2025.



BRADEN K. BALL, JR.

Florida Bar No. 89000

LITVAK BEASLEY WILSON & BALL, LLP

40 Palafox Place, Suite 300

Pensacola, Florida 32502

Telephone: (850) 432-9818

Facsimile: (850) 432-9830

Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 21st day of Novmeber, 2025, a copy of the foregoing has been furnished to the Defendant, Marc M. Moszkowski, Le Verdos, 83300 Chateaudouble, France (m.moszkowski@deepgulf.net) via the Court's E-filing system.



BRADEN K. BALL, JR.

Florida Bar No. 89000

LITVAK BEASLEY WILSON & BALL, LLP

40 Palafox Place, Suite 300

Pensacola, Florida 32502

Telephone: (850) 432-9818

Facsimile: (850) 432-9830

Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com